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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/664,771	06/29/2010	Anthony Brown	P298-US-CH-P (CDS0183US)	4901
23413	7590	12/07/2012	EXAMINER	
CANTOR COLBURN LLP 20 Church Street 22nd Floor Hartford, CT 06103			PADEN, CAROLYN A	
			ART UNIT	PAPER NUMBER
			1791	
			NOTIFICATION DATE	DELIVERY MODE
			12/07/2012	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 12/664,771	Applicant(s) BROWN ET AL.	
	Examiner CAROLYN PADEN	Art Unit 1791	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 23 October 2012.
- 2a) ☒ This action is **FINAL**. 2b) ☐ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-17 is/are pending in the application.
- 5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-17 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|---|---|
| 1) ☒ Notice of References Cited (PTO-892) | 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____. |
| 2) ☒ Information Disclosure Statement(s) (PTO/SB/08)
Paper No(s)/Mail Date <u>10-23-12</u> . | 4) ☐ Other: ____. |

The rejection of the claims under 35 USC 102 over Kondou as further evidenced by Minifie has been dropped in response to applicant's arguments.

The following is a quotation of 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

Claims 1-6 are rejected under 35 U.S.C. 103(a) as being unpatentable over Kondou (6,045,850) as further evidenced by Minifie for reasons of record.

Applicant argues that Kondou is directed to cocoa and not to chocolate. Applicant urges that good quality chocolate has a continuous fat phase that coats the solid particles and further urges that the cocoa of Kondou would not be expected to have these features. This has been considered but does not overcome the rejection. The chocolate in applicant's specification is not defined to have these qualities. The claims merely require the composition to contain erythritol and 15-24.9% fat. The claims as written do not refer to "chocolate" per se because the chocolate of the specification contains 26-50% fat. If applicant intends to indicate a

specific chocolate, the claims clearly set forth the desired chocolate specifics. Kondou is considered to be a chocolate composition because it contains chocolate ingredients and is chocolate flavored.

Applicant argues that Kondou is directed to a low calorie compounded cocoa composition. Applicant urges that one of ordinary skill in the art would not select cocoa with a fat content of more than 10% because the higher fat cocoa would add more calories to the beverage. This has been considered but is not persuasive. Minifie teaches that the public is accustomed to cocoa with 20-25% cocoa. It is well known in the art that the cocoa butter or fat in cocoa contributes to the flavor quality of cocoa. Although Kondou is providing a lower calorie composition, the caloric reduction in Kondou is the result of substituting erythritol for sugar. There is no suggestion in Kondou of further providing lower calorie product with a reduced cocoa flavor. Applicant urges that only 6-34% cocoa used in Kondou's formulation. This has been considered but does not overcome the rejection. The formulations used in the dissolution test (column 3, lines 20-30) provide for a chocolate product with the composition of the claims.

Claims 1-14 and 16-17 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to

particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-AIA the applicant regards as the invention.

It is not seen that any and all amounts of erythritol with fat will result in in a chocolate composition. There is no chocolate, cocoa or cocoa butter in the chocolate composition of the claims. It is unclear as to what amount of erythritol is contemplated in the composition. The chocolate described in the specification at page 1 is not the chocolate composition of the claims because the chocolate composition at page 1 contains 26-50% fat, which is too much fat. An amendment to the claims clarifying this issue would overcome the rejection.

It is unclear in claim 9 as to what caloric reduction is contemplated because applicant is comparing his chocolate to an unknown. An amendment to the claim cancelling claim 9 would overcome the rejection.

Claims 1-14 are rejected under 35 U.S.C. 103(a) as being unpatentable over Beckett (7,186,435 or 7,651,721) in view of Kondou (6,045,850) for reasons of record.

Applicant argues that Beckett teaches away from included polyol to reduce the caloric content of chocolate at column 6, lines 53-58. Applicant

urges that Beckett teaches that water is a better way of reducing calories as compared to sugar substitutes. This has been considered but does not overcome the rejection. The inclusion of water alone would be expected to reduce the sweetness of chocolate and provide a product that would not taste as good. Applicant argues that Beckett teaches that some polyols have a higher caloric content than sucrose. Given the teachings of Beckett at column 6, lines 53-58, one of ordinary skill in the art would be led to find out the caloric content of polyols before selecting one to use. Beckett is not the only reference relied upon in this rejection. Kondou is relied upon to show the caloric content of polyols, such as erythritol and maltitol.

Applicant argues that a replacement of sucrose in Beckett would lead to an increase in fat content. This is disagreed with. Kondou teaches at column 4, lines 35-40 that erythritol has 0.75 of the degree of sweetness of sucrose. Kondou also provides for aspartame and stevia as low calorie sweeteners. In Examples 1 & 2, Kondou provides examples of compositions where sucrose is replaced by erythritol and stevia where in percent of sweetener in the composition does not change. Considering the combination of sweeteners taught in Kondou, one of ordinary skill in the art would be able to provide a replacement polyol composition for the

chocolate in Beckett without altering the percentage of fat in the composition (shown at column 6, lines 43-52).

Claims 10, 16 and 17 are rejected under 35 U.S.C. 103(a) as being unpatentable over Beckett (7,186,435 or 7,651,721) in view of Kondou as applied to claims 1-14 above, and further in view of Netzer for reasons of record.

Applicants' arguments are directed to the rejection of the claims over Beckett and Kondou so no additional arguments need to be addressed for this rejection.

Claim 15 is rejected under 35 U.S.C. 103(a) as being unpatentable over Simburg (7,579,031) for reasons of record.

Applicant argues that the composition of milk type #1 in Example 1 does not have the fat content of the claims. This has been considered but does not overcome the rejection. The claims are directed to a process and not to a product. The fact that the fat content in the composition may be different is not seen to result in a new and unobvious process.

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless –

(b) the invention was patented or described in a printed publication in this or a foreign country or in public use or on sale in this country, more than one year prior to the date of application for patent in the United States.

Claims 1-7, 12 and 13 are rejected under 35 U.S.C. 102(b) as being clearly anticipated by Matsui (H10-99022).

Matsui discloses a low fat low calorie chocolate. The fat content of the chocolate is shown on page 2, line 5 and claim 1. The formulation for the chocolate is shown in example 3 to include sucrose, erythritol, powdered skimmed milk and cocoa butter. Powdered skimmed milk is seen to be the source of milk protein and casein.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to CAROLYN PADEN whose telephone number is (571)272-1403. The examiner can normally be reached on Monday to Friday from 7am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Tarazano D. Lawrence, can be reached on 571-272-1515. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status

information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://portal.uspto.gov/external/portal>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free).

/Carolyn Paden/

Primary Examiner 1781